

## TENTATIVE RULING

**Case:** **ASI Savannah At Southport, LP v. McCowan-Veal**  
**Case No. CV-2025-3691**

**Hearing Date:** **January 16, 2026** **Department Two** **1:30 p.m.**

Defendant Charmaine McCowan’s request for judicial notice is **GRANTED IN PART**. (Evid. Code, §§ 452, subd. (c), 453.) While the Court takes judicial notice of Exhibits B and C, the Court finds that Exhibit A is irrelevant to the Court’s determination of the demurrer. (*Malek Media Group LLC v. AXQG Corp.* (2020) 58 Cal.App.5th 817, 825 [“Any matter to be judicially noticed must be relevant to a material issue”].)

Defendant’s demurrer to plaintiff ASI Savannah At Southport, LP’s complaint is **SUSTAINED WITHOUT LEAVE TO AMEND**. (Code Civ. Proc., § 430.10, subd. (e).) While plaintiff attached the Violence Against Women Act (“VAWA”) notices to its notice to pay rent in three days or surrender possession of premises in thirty days (“three-day notice”), the VAWA notices expired prior to their service on defendant. (Complaint, ¶¶ 9(e), 10(d), Exhibits 2 & 3 [indicating that the three-day notice was served on October 24, 2025, and the VAWA notices expired on June 30, 2017].) Therefore, plaintiff did not attach a “Notice of Occupancy Rights under the Violence Against Women Act,” *as prescribed and in accordance with directions provided by HUD*” and a “certification form, *in a form approved by HUD*” to the notice served on defendant. (24 C.F.R. § 5.2005, subds. (a)(1), (a)(2)(iii), emphasis added; Complaint, ¶ 9(e), Exhibit 2.) As the notice did not include the required VAWA notices pursuant to statute, it “cannot support an action for unlawful detainer.” (*DHI Cherry Glen Associates, L.P. v. Gutierrez* (2019) 46 Cal.App.5th Supp. 1, 9-10; 24 C.F.R. § 5.2005, subd. (a)(1).)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

## TENTATIVE RULING

**Case:** **Hotel Winters, LLC v. Zhou**  
**Case No. CV-2023-1836**

**Hearing Date:** **January 16, 2026** **Department Eight** **1:30 p.m.**

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Defendant's renewed motion to compel further discovery responses is **DENIED**. (Code Civ. Proc., §§ 2030.300, 2031.310, 2033.290.) Defendant filed this motion more than 45 days after plaintiff Hotel Winters, LLC served its verified responses to the discovery requests identified in defendant's motion. (Zhou decl., ¶¶ 1-3 & 9; Mehta decl., ¶ 5.) As this 45-day deadline has expired, the Court lacks jurisdiction to rule on this motion to compel. (Code Civ. Proc., §§ 2030.300, subd. (c), 2031.310, subd. (c), 2033.290, subd. (c); see *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1409-1410.)

Defendant's requests for issue and monetary sanctions are **DENIED**. (Code Civ. Proc., §§ 2023.010, 2023.030, 2030.300, 2031.310, 2033.290.) Plaintiff did not unsuccessfully oppose defendant's motion. (Code Civ. Proc., §§ 2030.300, 2031.310, 2033.290.) Further, as the Court lacks jurisdiction to rule defendant's motion, the Court does not consider whether plaintiff engaged in the misuse of the discovery process. (Code Civ. Proc., §§ 2023.010, 2023.030.)

Plaintiff's request for sanctions is **DENIED**. (Code Civ. Proc., §§ 2023.010, 2023.020.) As the Court lacks jurisdiction to rule defendant's motion, the Court does not consider whether defendant failed to meet and confer in good faith or defendant misused the discovery process through her numerous communications and conditional demands. (Code Civ. Proc., §§ 2023.010, subds. (d), (f), & (g), 2023.020; Opposition, pp. 9-10.) To the extent that plaintiff seeks sanctions under sections 2030.300(d), 2031.310(h), and 2033.290(d), the Court finds that the circumstances make the imposition of sanctions – under these authorities – unjust. Specifically, plaintiff only makes a passing reference to requesting monetary sanctions under these sections. (See Opposition, p. 10.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.